

Stereo. HCJDA-38
Judgment Sheet
**IN THE LAHORE HIGH COURT,
LAHORE.**
JUDICIAL DEPARTMENT

WP No.106730/2017

Mst. SHAHLA FAIZ
Vs
VICE-CHANCELLOR, UNIVERSITY OF EDUCATION,
LAHORE and others

JUDGMENT

Date of hearing	21.02.2019
Petitioner By	M/s Raja Ahmad Nawaz and Mian Abid Hussain, Advocates
Respondents By	Muhammad Aamir Sohail, Rai Shahid Saleem Khan, Assistant Advocate-General on Court's call for Respondents.

JAWAD HASSAN, J. The Petitioner, through this Constitutional Petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "***Constitution***") has called in question the orders dated 22.05.2017 and 03.08.2017 and the other actions of the Respondents-Authorities of the University of Education, Lahore (the "***University***"), whereby she was declined to submit her thesis for MPhil (Education).

3. Learned counsel for the Petitioner states that Petitioner applied to the University to complete her M.Phil (Education) in the Sessions 2013-15. The Petitioner after completing her

course work and passing the examination filed her thesis in October 2016 but the University did not accept the same on the ground that the petitioner delayed in filing the thesis and also not paid the required fee. Learned counsel for the petitioner relied on the conditions mentioned in the Prospectus of the University in which Clauses 4.2 and 4.3 are applicable to the petitioner.

4. On the other hand, learned counsel for the Respondent-University filed the report and parawise comments denying the averments of the Petition and controverted the arguments advanced by learned counsel for the Petitioner.

5. Heard. Record perused.

6. The issue involved in this case is interpretation of Clauses 4.2 and 4.3 of the Prospectus regarding Admission, Registration and Examination Regulations for MS/MPHIL, which for the sake of brevity reads as under:

4. Medium of Instructions and Program Duration

4.1.

4.2. The minimum period for the submission of thesis shall be two (2) years, to be counted from the start of classes.

4.3. The maximum residency period for the submission of thesis shall be three (3) years, to be counted from the start of classes."

7. However as per the impugned order dated 22.05.2017 the Respondents have denied/declined the collection of thesis of the Petitioner on the following ground:

"The Petitioner after completion of her two year's duration i.e. October, 2015, did not apply for any extension of her thesis submission nor did she pay any fee in respect thereof. She tried to submit her thesis in the month of October, 2016; which almost after the expiry of Twelve months from the due date; which submission cannot be entertained as per rules and regulations of UOE Lahore."

8. Perusal of Clause 4.2 reveals that the minimum period for the submission of thesis shall be two years to be counted from the start of classes but as per Clause 4.3 the maximum period will be 3 years to be counted from the start of classes. It is admitted fact that the Petitioner got admission in October, 2013 i.e. the Start of Classes and according to the above referred Clause 4.3 of the Prospectus maximum period for submission of thesis is three years. The record reveals, that the Respondents have admitted in the impugned order that the Petitioner tried to submit her thesis in the month of October, 2016 meaning thereby that she had the time to submit thesis till October 2016. In this view of the situation admittedly the Petitioner intended to submit thesis within time as per Clause 4.3, as such the impugned order is not sustainable in the eye of law. Where there is contradiction amongst the clauses the one which is beneficial should be adopted in favour of the affect.

9. As a sequel, this petition is allowed, the impugned orders dated 22.05.2017 and 03.08.2017 are set aside and the Respondent-University is directed to collect/receive the thesis of the Petitioner and proceed in accordance with law.

(JAWAD HASSAN)
JUDGE

M.NAVEED